

GOVERNOR CM STATE COUNCIL

RESPONSIBLE STATE GOVERNMENT UNDER → APPOINTMENT, TENURE, OATH, CONDITIONS → EXECUTIVE, LEGISLATIVE, FINANCIAL, JUDICIAL → AID AND ADVICE WITH → GOVERNMENT FORMATION, FLOOR TEST → ARTICLES 200-201: ASSENT, RETURN

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 RESPONSIBLE STATE GOVERNMENT UNDER ARTICLES 153-167

RESPONSIBLE STATE GOVERNMENT UNDER ARTICLES 153-167

LEGISLATIVE ASSEMBLY

CM + COUNCIL

GOVERNOR GIVES LEGAL FORM

ARTICLE MAP

153 GOVERNOR

154 EXECUTIVE POWER

155 APPOINTMENT

CONSTITUTIONAL BASIS / ARTICLE

- PEOPLE → LEGISLATIVE ASSEMBLY → CONFIDENCE → CM + COUNCIL
- GOVERNOR GIVES LEGAL FORM
- ARTICLE MAP
- 153 Governor
- 154 executive power

POWER / PROCEDURE

- 155 appointment
- 156 term/pleasure
- 157 qualification
- 158 conditions
- 159 oath

CHECK / LIMIT

- 161 clemency
- 163 advice/discretion
- 164 ministers/responsibility
- 165 Advocate General
- 166 business

FEDERAL / RIGHTS IMPACT

- 167 CM duties.
- CORE RULE
- Governor is constitutional head; the confidence-holding ministry is the real political executive.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: In parliamentary practice, that pleasure is operationally controlled by the CM for individual ministers while the whole ministry depends on Assembly confidence.

01

STAGE 01 APPOINTMENT, TENURE, OATH, CONDITIONS AND IMMUNITY

APPOINTMENT, TENURE, OATH, CONDITIONS AND IMMUNITY

PRESIDENT APPOINTS BY WARRANT

INDIAN CITIZEN + 35 YEARS

ARTICLE 159 OATH BEFORE HC CJI OR THE SENIOR-MOST

CONDITIONS NO PARLIAMENT/STATE-LEGISLATURE SEAT

NO OTHER OFFICE OF PROFIT

PROTECTED EMOLUMENTS.

TENURE NOMINAL FIVE YEARS + PRESIDENT'S PLEASURE + RESIGNATION

President appoints by warrant → Indian citizen + 35 years → Article 159 oath before

CONDITIONS no Parliament/State-legislature seat

no other office of profit

protected emoluments.

TENURE nominal five years + President's pleasure + resignation to President + hold office until

CONSTITUTIONAL BASIS / ARTICLE

- President appoints by warrant → Indian citizen + 35 years → Article 159 oath before HC CJI or the senior-most available judge.
- CONDITIONS no Parliament/State-legislature seat

POWER / PROCEDURE

- no other office of profit
- protected emoluments.

CHECK / LIMIT

- TENURE nominal five years + President's pleasure + resignation to President + hold office until successor.
- Pleasure does not convert the office into an ordinary Union employee.

FEDERAL / RIGHTS IMPACT

- ARTICLE 361 personal immunity for official acts while remedies against government action remain available
- criminal proceedings cannot continue during the term; civil notice rules are distinct.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Governor is entitled to official residence without rent and to emoluments, allowances and privileges determined by parliamentary law; emoluments and allowances cannot be diminished during the term.

02

STAGE 02 EXECUTIVE, LEGISLATIVE, FINANCIAL, JUDICIAL AND STATUTORY POWERS

EXECUTIVE, LEGISLATIVE, FINANCIAL, JUDICIAL AND STATUTORY POWERS

EXECUTIVE APPOINT CM; APPOINT MINISTERS ON CM ADVICE; APPOINT

LEGISLATIVE SUMMON, PROROGUE, DISSOLVE ASSEMBLY; ADDRESS; NOMINATE WHERE TEXT

FINANCIAL RECOMMEND MONEY BILL AND DEMANDS; CAUSE BUDGET TO

ARTICLE 161 CLEMENCY FOR OFFENCES WITHIN STATE EXECUTIVE FIELD

STATUTORY ROLE

GOVERNOR AS UNIVERSITY CHANCELLOR EXISTS ONLY WHERE THE RELEVANT

IT IS NOT AN INHERENT POWER FLOWING FROM ARTICLES

EXECUTIVE appoint CM; appoint ministers on CM advice; appoint Advocate General and specified authorities.

LEGISLATIVE summon, prorogue, dissolve Assembly; address; nominate where text permits; assent/reserve/return.

FINANCIAL recommend Money Bill and demands; cause budget to be laid; use Contingency Fund under

Article 161 clemency for offences within State executive field; judicial review survives.

CONSTITUTIONAL BASIS / ARTICLE

- EXECUTIVE appoint CM; appoint ministers on CM advice; appoint Advocate General and specified authorities.
- LEGISLATIVE summon, prorogue, dissolve Assembly; address; nominate where text permits; assent/reserve/return.

POWER / PROCEDURE

- FINANCIAL recommend Money Bill and demands; cause budget to be laid; use Contingency Fund under law.
- Article 161 clemency for offences within State executive field; judicial review survives.

CHECK / LIMIT

- STATUTORY ROLE
- Governor as university Chancellor exists only where the relevant State statute so provides.

FEDERAL / RIGHTS IMPACT

- It is not an inherent power flowing from Articles 153-167.
- EXECUTIVE appoint CM; appoint ministers on CM advice; appoint Advocate General and specified authorities.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The State therefore has a dual executive: Governor as formal constitutional head; CM-led ministry as responsible political executive.

03

STAGE 03 AID AND ADVICE WITH A NARROW, REVIEWABLE DISCRETION FIELD

02

STAGE 02

EXECUTIVE, LEGISLATIVE, FINANCIAL, JUDICIAL AND STATUTORY POWERS

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EXECUTIVE APPOINT CM; APPOINT MINISTERS ON CM ADVICE; APPOINT

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STAGE 03

AID AND ADVICE WITH A NARROW, REVIEWABLE DISCRETION FIELD

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SHAMSHER SINGH (1974)

GOVERNOR ORDINARILY ACTS ON MINISTERIAL AID AND ADVICE.

BOUNDED EXCEPTIONS HUNG HOUSE FORMATION

FLOOR-TEST TRIGGER ON OBJECTIVE MATERIAL

BILL RESERVATION

ARTICLE 356 REPORT

EXPRESS CONSTITUTIONAL OR NECESSARY SITUATIONAL DISCRETION.

BOUNDED EXCEPTIONS hung House formation

floor-test trigger on objective material

Bill reservation

Article 356 report

express constitutional or necessary situational discretion.

CONSTITUTIONAL BASIS / ARTICLE

- Shamsher Singh (1974) → Governor ordinarily acts on ministerial aid and advice.
- BOUNDED EXCEPTIONS hung House formation
- floor-test trigger on objective material

POWER / PROCEDURE

- Bill reservation
- Article 356 report
- express constitutional or necessary situational discretion.

CHECK / LIMIT

- SESSION CONTROL
- Nabam Rebia (2016) → Articles 174-175 ordinarily advice-bound.
- Subhash Desai (2023) → no floor test merely to arbitrate an internal party dispute.

FEDERAL / RIGHTS IMPACT

- The Speaker-removal issue from Nabam Rebia (2016) was referred in Subhash Desai (2023) and remains pending.
- REVIEW discretion is not personal political preference; relevance, purpose and objective material matter.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Unlike Article 74 after the 42nd/44th Amendment scheme, Article 163 does not use an equivalent express textual command that all advice is binding.

04

STAGE 04

GOVERNMENT FORMATION, FLOOR TEST, DISMISSAL AND DISSOLUTION

GOVERNMENT FORMATION, FLOOR TEST, DISMISSAL AND DISSOLUTION

HUNG ASSEMBLY INVITE PERSON MOST LIKELY TO COMMAND CONFIDENCE

EARLY FLOOR TEST

NO SECRET RAJ BHAVAN COUNT.

LOSS OF MAJORITY OBJECTIVE MATERIAL

FLOOR TEST AS ORDINARY CONSTITUTIONAL FORUM.

S.R. BOMMAI (1994)

MAJORITY NORMALLY PROVED IN HOUSE; ARTICLE 356 IS REVIEWABLE.

HUNG ASSEMBLY invite person most likely to command confidence → early floor test → no

LOSS OF MAJORITY objective material → floor test as ordinary constitutional forum.

S.R. Bommai (1994) → majority normally proved in House; Article 356 is reviewable.

Subhash Desai (2023) → factional dissent alone cannot justify a floor test.

DISMISSAL / DISSOLUTION ministry losing a floor test may resign or face dismissal

CONSTITUTIONAL BASIS / ARTICLE

- HUNG ASSEMBLY invite person most likely to command confidence → early floor test → no secret Raj Bhavan count.
- LOSS OF MAJORITY objective material → floor test as ordinary constitutional forum.

POWER / PROCEDURE

- S.R. Bommai (1994) → majority normally proved in House; Article 356 is reviewable.
- Subhash Desai (2023) → factional dissent alone cannot justify a floor test.

CHECK / LIMIT

- DISMISSAL / DISSOLUTION ministry losing a floor test may resign or face dismissal
- dissolution advice is not mechanically binding when an alternative government is feasible.

FEDERAL / RIGHTS IMPACT

- Rameshwar Prasad (2006) → speculative horse-trading material cannot justify pre-emptive dissolution.
- HUNG ASSEMBLY invite person most likely to command confidence → early floor test → no secret Raj Bhavan count.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: "Governor's pleasure" in Article 164 does not authorise dismissal of a CM who retains Assembly confidence.

05

STAGE 05

ARTICLES 200-201: ASSENT, RETURN, RESERVATION AND CURRENT CONTROL

ARTICLES 200-201

ASSENT, RETURN, RESERVATION AND CURRENT CONTROL

ARTICLE 200 OPTIONS ASSENT

RETURN A NON-MONEY BILL ONCE

RESERVE FOR PRESIDENT.

MANDATORY RESERVATION APPLIES WHERE THE BILL ENDANGERS THE HIGH

AFTER RECONSIDERATION THE GOVERNOR CANNOT RETURN THE SAME BILL

ARTICLE 201

ARTICLE 200 OPTIONS assent

return a non-Money Bill once

reserve for President.

Mandatory reservation applies where the Bill endangers the High Court's constitutional position.

AFTER RECONSIDERATION the Governor cannot return the same Bill again; reservation questions remain text-specific.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 200 OPTIONS assent

POWER / PROCEDURE

- Mandatory reservation applies where the Bill endangers the High Court's constitutional position.

CHECK / LIMIT

- President may assent, withhold, or direct return of a non-Money Bill through the Governor.

FEDERAL / RIGHTS IMPACT

- timelines and deemed assent used on the facts.

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05

CONSTITUTIONAL BASIS / ARTICLE

- HUNG ASSEMBLY invite person most likely to command confidence → early floor test → no secret Raj Bhavan count.
- LOSS OF MAJORITY objective material → floor test as ordinary constitutional forum.

POWER / PROCEDURE

- S.R. Bommai (1994) → majority normally proved in House; Article 356 is reviewable.
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06

STAGE 05ARTICLES 200-201: ASSENT, RETURN, RESERVATION AND CURRENT CONTROL

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Mandatory reservation applies where the Bill endangers the High Court's constitutional position.

AFTER RECONSIDERATION the Governor cannot return the same Bill again; reservation questions remain text-specific.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 200 OPTIONS assent
- return a non-Money Bill once
- reserve for President.

POWER / PROCEDURE

- Mandatory reservation applies where the Bill endangers the High Court's constitutional position.
- AFTER RECONSIDERATION the Governor cannot return the same Bill again; reservation questions remain text-specific.
- ARTICLE 201

CHECK / LIMIT

- President may assent, withhold, or direct return of a non-Money Bill through the Governor.
- CURRENT CASE CONTROL
- State of Tamil Nadu v. Governor of Tamil Nadu (2025)

FEDERAL / RIGHTS IMPACT

- timelines and deemed assent used on the facts.
- In re Assent, Withholding or Reservation of Bills (2025): advisory and non-binding
- no rigid timelines or automatic deemed assent, but prolonged unexplained inaction is reviewable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 200 gives the Governor several choices on a Bill, but a repassed non-Money Bill cannot be met with renewed withholding of assent.

07

STAGE 06ORDINANCE NECESSITY AND CLEMENCY LIMITS

ORDINANCE NECESSITY AND CLEMENCY LIMITSARTICLE 213 ORDINANCE LEGISLATURE NOT IN SESSION AS CONSTITUTIONALLYACT-LIKE FORCECEASES SIX WEEKS AFTER REASSEMBLY UNLESS APPROVED EARLIER.RE-PROMULGATION CONTROLD.C. WADHWA (1986)

ROUTINE SERIAL RE-PROMULGATION IS A FRAUD ON THE CONSTITUTION.KRISHNA KUMAR SINGH (2017)

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 213 ORDINANCE legislature not in session as constitutionally required + immediate action necessary	D.C. Wadhwa (1986) → routine serial re-promulgation is a fraud on the Constitution.	ARTICLE 161	D.C. Wadhwa (1986) → routine serial re-promulgation is a fraud on the Constitution.
Act-like force → laying → ceases six weeks after reassembly unless approved earlier.	Krishna Kumar Singh (2017) → laying is mandatory; satisfaction is reviewable	State-field offences; advice-bound clemency; relevant-material and non-arbitrariness review.	
RE-PROMULGATION CONTROL	legislative supremacy bars automatic enduring effects of every lapsed ordinance.	Unlike Article 72, it has no court-martial limb and no independent Union-law offence limb.	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 213 ORDINANCE legislature not in session as constitutionally required + immediate action necessary
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- RE-PROMULGATION CONTROL

POWER / PROCEDURE

- D.C. Wadhwa (1986) → routine serial re-promulgation is a fraud on the Constitution.
- Krishna Kumar Singh (2017) → laying is mandatory; satisfaction is reviewable
- legislative supremacy bars automatic enduring effects of every lapsed ordinance.

CHECK / LIMIT

- ARTICLE 161
- State-field offences; advice-bound clemency; relevant-material and non-arbitrariness review.
- Unlike Article 72, it has no court-martial limb and no independent Union-law offence limb.

FEDERAL / RIGHTS IMPACT

- D.C. Wadhwa (1986) → routine serial re-promulgation is a fraud on the Constitution.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: S.R. Bommai (1994) makes the House floor the ordinary forum for testing a disputed majority.

STAGE 07CHIEF MINISTER, STATE COUNCIL, ADVOCATE GENERAL AND CHANCELLOR

CHIEF MINISTER, STATE COUNCIL, ADVOCATE GENERAL AND CHANCELLORCHIEF MINISTERGOVERNOR APPOINTS PROVE ASSEMBLY CONFIDENCECHOOSE PORTFOLIOS/MINISTERSCOORDINATE POLICYADVISE SESSIONS/DISSOLUTIONCOMMUNICATE UNDER ARTICLE 167.

CHIEF MINISTER

Governor appoints → prove Assembly confidence → choose portfolios/ministers

coordinate policy → advise sessions/dissolution → communicate under Article 167.

STATE COUNCIL collectively responsible to Assembly minister individually holds office during Governor's pleasure, constitutionally mediated

and collective responsibility.

CONSTITUTIONAL BASIS / ARTICLE

- CHIEF MINISTER
- Governor appoints → prove Assembly confidence → choose portfolios/ministers
- coordinate policy → advise sessions/dissolution → communicate under Article 167.

POWER / PROCEDURE

- STATE COUNCIL collectively responsible to Assembly minister individually holds office during Governor's pleasure, constitutionally mediated by CM advice
- and collective responsibility.
- 91ST AMENDMENT ministry cap = 15% of Assembly strength; minimum 12; defector-minister bar.

CHECK / LIMIT

- Tribal Welfare Minister requirement applies to the constitutionally specified States.
- ADVOCATE GENERAL
- Article 165 law officer; qualifications of a High Court judge; advises State government.

FEDERAL / RIGHTS IMPACT

- State-statute office only; powers and advice rules vary with the governing State law.

GOVERNOR CM STATE COUNCIL • TILE 3/4 • same master rows 4363-7597 of 9779 • continues below

- Act-like force → laying → ceases six weeks after reassembly unless approved earlier.
- RE-PROMULGATION CONTROL

- Krishna Kumar Singh (2017) → laying is mandatory; satisfaction is reviewable
- legislative supremacy bars automatic enduring effects of every lapsed ordinance.

- non-arbitrariness review.
- Unlike Article 72, it has no court-martial limb and no independent Union-law offence limb.

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CHECK / LIMIT

- Tribal Welfare Minister requirement applies to the constitutionally specified States.
- ADVOCATE GENERAL
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FEDERAL / RIGHTS IMPACT

- State-statute office only; powers and advice rules vary with the governing State law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Business rules allocate work among ministers and organise decision-making, except constitutionally discretionary business.

08

STAGE 08FEDERAL NEUTRALITY, COMMISSION REFORMS, TRAPS AND ANSWER SPINE

FEDERAL NEUTRALITY, COMMISSION REFORMS, TRAPS AND ANSWER SPINEFAULT LINESUNION APPOINTMENT + PLEASURE TENURE + STATE-FACING POWERSRISK OF PARTISAN PERCEPTION.PUNCHHI ROUTE EMINENT DETACHED APPOINTEECM CONSULTATIONSECURE CONVENTION

FLOOR-TEST PRIORITY REASONED ARTICLE 356 MATERIAL

FAULT LINES

Union appointment + pleasure tenure + State-facing powers → risk of partisan perception.

SARKARIA / PUNCHHI ROUTE eminent detached appointee

CM consultation

secure convention

CONSTITUTIONAL BASIS / ARTICLE

- FAULT LINES
- Union appointment + pleasure tenure + State-facing powers → risk of partisan perception.
- SARKARIA / PUNCHHI ROUTE eminent detached appointee
- CM consultation
- secure convention

POWER / PROCEDURE

- floor-test priority reasoned Article 356 material
- restrained assent/reservation
- post-tenure neutrality.
- PRELIMS FIREWALL
- Governor elected? NO

CHECK / LIMIT

- five-year term guaranteed? NO
- discretion general? NO
- Chancellor constitutional? NO
- Money Bill returnable? NO
- Article 361 = State immunity? NO.

FEDERAL / RIGHTS IMPACT

- MAINS SPINE state textual power → advice default → exceptional trigger → case with year
- federal-risk counterpoint → commission reform → neutral constitutional-umpire conclusion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 356 may operate on a Governor's report or otherwise; a report is important but not textually indispensable.

E

EXTRASUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENTA1. FORMAL VESTING, REAL AUTHORITY AND CONSTITUTIONAL TRUSTEESHIPA2. THE POLITICAL-INFORMATION PROBLEMA3. ASSENT AS A SEPARATION-OF-POWERS PROBLEMA4. ANTI-DEFECTION AND FORMATION CRISES

LEGAL RULES VERSUS CONVENTIONS

A6. SOURCE AND FACTUAL-CONTROL NOTE

A5. FEDERAL REFORM

OPTIONAL DOCTRINE / CASE

- A1. Formal vesting, real authority and constitutional trusteeship
- A2. The political-information problem
- A3. Assent as a separation-of-powers problem
- A4. Anti-defection and formation crises

ADVANCED LIMIT

- A5. Federal reform: legal rules versus conventions
- A6. Source and factual-control note
- [ANALYSIS] The Governor is best described as a constitutional trustee of process , not a rival policy-maker.
- [ANALYSIS] Trusteeship requires fidelity to institutions: Assembly for confidence, political party for internal leadership, Speaker for Tenth Schedule

COMPARATIVE NUANCE

- adjudication, courts for legality and elected ministry for policy.
- [ANALYSIS] A Governor often receives asymmetric claims from parties that benefit from a particular timing.
- [ANALYSIS] The safest institutional response is to minimise private factual adjudication and move the decisive question to the public Assembly floor.
- [LIMIT] A floor test cannot cure every illegality. It does not decide the validity of a whip, disqualification petition or party constitution.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.